

1597
Oct. 19

are beautiful and spacious edifices, to convert them into garners and storehouses for grain and other merchandise.

SMITHE
v.
IRENMAN
Misdemean-
our

[p. 47]

There was a cause of hearing between Smithe and Irenman,¹ an attorney, on a bill and answer, by order, because he confessed to this in his answer. There was a misdemeanour in Irenman,¹ being an attorney in the Common Pleas, in returning a *venire facias* in this way: he had a *venire facias* returned by the Sheriff under his hand and seal, and he lost this, and procured a new one from the Clerk of the Writs, and he himself subscribed the name of the Sheriff, and put the Sheriff's seal to it; and he justified the doing of this as the common use of many other attorneys of the Common Bench, and that in debt and trespass it is an ordinary thing that the attorney returns this without the Sheriff. By Anderson, Chief Justice of the Common Bench: But this is erroneous and worthy of great punishment, and he would examine and reform this, and it would be a virtue in Ingram [*sic*] to accuse them; and "*multitudo peccatorum non tollit sensum peccati nec poenam, sed minuit pudorem peccatorum.*"²

Another misdemeanour in Irenman¹ was in altering a panel in this way: he had the panel, and finding at the commencement of it three or four names of favourites of the defendant, he wrote other three or four in their place, and transposed them to the lowest part of the panel.

Sentence

And for these misdemeanours he was fined £200, imprisonment, to have papers in Westminster Hall, confession in the Common Bench, and to be debarred from all practice as an attorney, and it was referred also to my Lord Anderson to expel him from the Common Bench for ever. And the Lord Keeper said that this is a great offence and worthy of very great punishment, for it confounds many laws; for the Sheriff is sworn to make good returns, and the Under-Sheriff is also sworn now-a-days, and cannot execute the office but once in three years, and he is to have a fee for each return; and by this false return subjects are grieved

¹ First written Ingram.

² This word is doubtful.

and annoyed, the sheriff and under-sheriff are deceived, and the laws of no force; "For in my opinion (he said), in debt when there is a return on the original of *nichil*, and on *Alias* and *Capias* of *nihil*, or *non est inventus*, [made] by the Attorney of the party, without the sheriff, and then the defendant is sued to the exigent and outlawed, he would have an action on the case against the party who made the false return, when the defendant is [a man] of substance and easily to be found." And to this the Chief Justices said nothing, but seemed to agree as to the law. Lord Anderson, Chief Justice of the Common Bench, said that every attorney of the Common Bench took an oath to reveal every falsity and misdemeanour in the returning of writs, and other things, of all attorneys of the Court, if they knew of any; otherwise they were perjured if they did not do this.

Another cause of hearing on a bill and answer, William Farington, plaintiff, and ,¹ defendant. A bond was sealed by one William Farington, [the plaintiff's] third son, with additions² in all respects as if he was the father; and the father was arrested and paid the debt. And for this he sued the obligee in this Court. And when the matter appeared, William Farington the father prayed to be dismissed without costs; and this was allowed by the Court, if he would swear that he knew when he preferred his bill that his son William Farington was bound to the same obligee, with all the additions² of his father.

FARING-
TON'S case

[p. 49]

Bill dis-
missed with-
out costs

Another cause of hearing between Maye, plaintiff, and Ebden, defendant, a man of good fame and credit in Sussex, and having £200 in lands. The bill was scandalous and slanderous, and a defamation of the defendant, and concerned supposed riots, and charged him in manner with felony and other misdemeanours. Divers witnesses were examined and proved nothing at all. And therefore the cause was dismissed, the bill withdrawn from the file and cancelled, and the plaintiff was fined £40 with imprisonment.

MAYE
v.
EBDEN
Riot, &c.

Slanderous
bill dis-
missed with
costs, and
withdrawn
from the file
for want of
proof

¹ Blank in MS.

² This word is used in the sense of descriptions.

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Motion
Costs for at-
tachment on
insufficient
affidavit

Sergeant Healle moved for costs of appearance on attachment for contempt for non-appearance on process supposed to be served, because the attachment was procured on an affidavit insufficient to warrant it. The parties made an affidavit that they did not know of the process, and that it was never served on them. Wherefore it was ordered that the clerk who made the warrant of attachment on this insufficient affidavit should pay the costs of the parties who were never served with the process; and therefore there is no contempt in them, and they shall have their costs.

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In Camera Stellata, coram Consilio ibidem, die Veneris, 21^o Octobris, 1597, Elizab. 39, termino Michaelis.¹

KERKAM
v.
SMITHE and
others
—
Misdemean-
our

Bill dis-
missed

Kerkam, plaintiff, Smithe and others, defendants, for misdemeanours, for this that he² took upon himself to deliver one hundred loads of hay ('of heye, good, sweete & marchantable, suche as Plumsted marshe dothe yeelde'). This was admitted to be the whole of the matter, and therefore the cause was dismissed with costs; and the Counsellor, Cleighton of the Inner Temple, who put his hand to the bill, was fined £10, and debarred by the Lord Keeper from all practice in this Court.

Perjury

Another cause of hearing for perjury, in effect as follows: in a trial at common law, relating to common *pur cause del vicinage*, fourteen were sworn to prove it, and in Chancery fourteen others were sworn to prove it. And on a bill to prove them perjured, fourteen were examined in this Court, and the Court was moved if it be fit to sentence this or not, for if this Court convict any one of them of perjury, the other twenty-seven are also convicted thereof. And thereupon the Court dismissed the cause, and suspended the costs until the trial should be had at common law which is now pending; and this trial shall be pursued

¹ Six Councillors and Judges were present.

² It is not quite clear who is referred to: probably the defendant Smithe.